PROMISE & PRACTICE · DEEP DIVE · SOURCE ANALYSIS

The 14th Amendment — A House Divided

Citizenship, Written Into the Constitution

Name: _____ **Period:** _____ **Date:** _____

WHAT I CAN DO TODAY I can read primary sources about The 14th Amendment — A House Divided, weigh who made each one and why, and use evidence to answer historical questions.

Directions. A few phrases remade American law. Read them closely and name what each one does

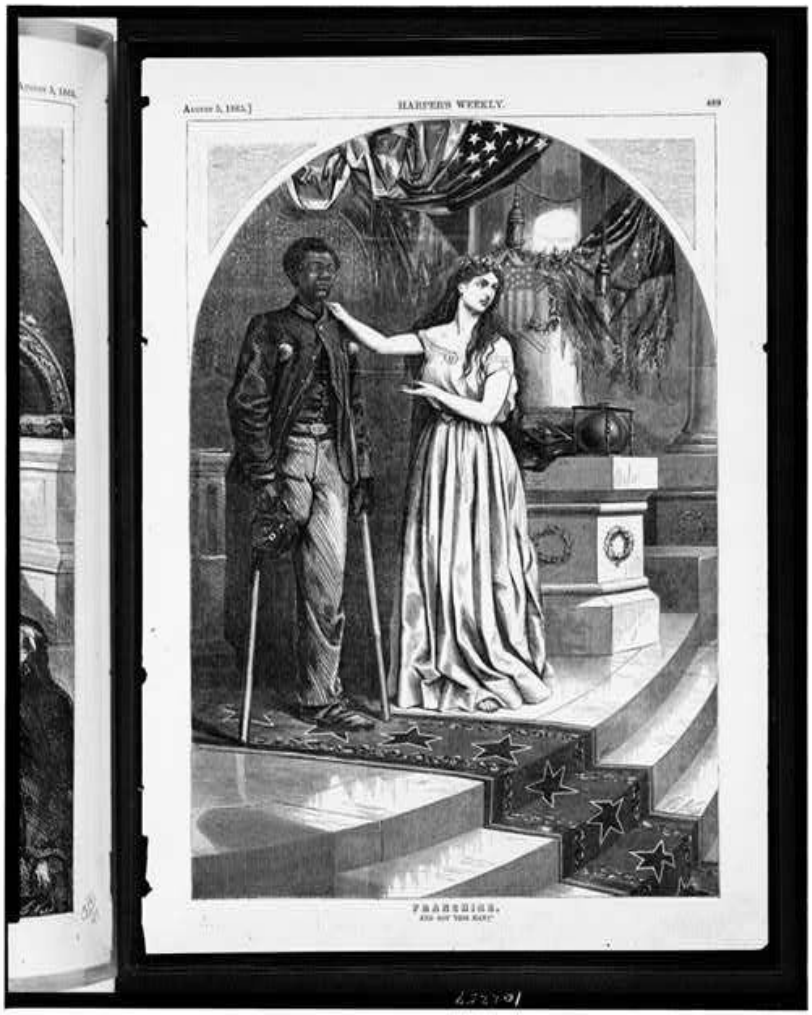
THE SOURCES

SOURCE · THE 14TH AMENDMENT, SECTION 1 · 1868 — The key clause

> *"All persons born or naturalized in the United States … are citizens of the United States and of the State wherein they reside. No State shall … deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws."*
> *— U.S. Constitution, Amendment XIV. Public domain*

— U.S. Constitution, Amendment XIV. Public domain.

THE IMAGE · 1865 — "And Not This Man?"



"Franchise — And Not This Man?" — wood engraving by Thomas Nast, Harper's Weekly, 1865, public domain (Library of Congress).

YOUR WORK

QUESTION 1 STEP 1 · THREE PHRASES

In your own words, explain what each phrase means: (a) "born or naturalized … are citizens," (b) "due process of law," (c) "equal protection of the laws."

QUESTION 2 STEP 2 · OVERTURNING DRED SCOTT

How did the citizenship clause directly reverse the Dred Scott decision of 1857?

- ☐ A. Dred Scott said Black people couldn't be citizens; the amendment made everyone born here a citizen
- ☐ B. it freed the enslaved
- ☐ C. it gave women the vote
- ☐ D. it had nothing to do with Dred Scott

QUESTION 3 STEP 3 · READ THE IMAGE

Nast draws a Black veteran who lost a leg for the Union. What argument is the image making about why this man deserves citizenship? How does it connect to the amendment?

QUESTION 4 STEP 4 · WHY IT STILL MATTERS

The 14th Amendment's promise went largely unenforced for decades, yet it became the cornerstone of modern civil rights. In three or four sentences, explain how words written in 1868 could matter so much a century later.

TEACHER ANSWER KEY — The 14th Amendment — A House Divided

QUESTION 1: Open response.

Look for a response along the lines of: "(a)... (b)... (c)..."

QUESTION 2: **Correct — A. Dred Scott said Black people couldn't be citizens; the amendment made everyone born here a citizen**

Right. Dred Scott said no Black American could be a citizen. The 14th Amendment made everyone born here a citizen — flatly overturning that ruling.

QUESTION 3: Open response.

Look for a response along the lines of: "The image argues that..., which the 14th Amendment answers by..."

QUESTION 4: Open response.

Look for a response along the lines of: "Even unenforced, the words mattered because..."